

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

USL AUTO EXPORTING INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*.

DOCKET NO. 23-13

Served: March 18, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER DENYING COMPLAINANT’S MOTION FOR SUMMARY JUDGMENT

On January 5, 2024, Complainant USL Auto Exporting, Inc. filed a motion for summary judgment, arguing that Respondent Easy Shipping Corporation’s misdeclaration of certain cargo, failure to pay freight charges, and failure to timely file customs paperwork constituted violations of 46 U.S.C. §§ 41102(c), 41104(a)(2)(A), and 41104(a)(3). On March 13, 2024,¹ Easy Shipping filed its opposition, arguing that there was a genuine dispute of material facts insofar as it was USL Auto Exporting that was responsible for the misdeclaration.

A party moving for summary judgment has the burden of showing that there is no genuine dispute as to the material facts. The Commission’s Rules do not explicitly provide for motions for summary judgment. Under Commission Rule 12, to the extent that application of the Federal Rules is consistent with sound administrative practice, the Federal Rules of Civil Procedure (“FRCP”) must be followed in instances that are not covered by the Commission’s Rules. 46 C.F.R. § 502.12.

Pursuant to FRCP 56(a), summary judgment must be granted when “there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law.” When a properly supported motion for summary judgment is made, the nonmoving party must set forth specific facts showing that there is a genuine issue for trial, and the judge must grant summary judgment if there is no genuine issue as to any material fact and the moving party is entitled to judgment as a matter of law. There is no requirement that the trial judge make findings of fact. *Anderson v. Liberty Lobby Inc.*, 477 U.S. 242, 249 (1986).

¹ Easy Shipping had previously served Complainant with the opposition and provided a courtesy copy to the presiding officer on February 7, 2024, in accordance with my order of January 29, 2024, but had failed to email it to the Office of the Secretary. Following a status conference on March 13, 2024, I ordered Easy Shipping to file its opposition with the Office of the Secretary and will accept it *nunc pro tunc*.

The Commission has emphasized that:

At the summary judgment stage, the role of the judge “. . . is not himself to weigh the evidence and determine the truth of the matter but to determine whether there is a genuine issue for trial.” *Anderson v. Liberty Lobby, Inc.*, [477 U.S. 242, 249 (1986)]. The party seeking summary judgment . . . has the burden of demonstrating that there is no genuine issue of material fact. *Adickes v. Kress & Co.*, 398 U.S. 144, 157 (1970); [10A]Wright, Miller & Kane, [Federal Practice and Procedure § 2727, p. 455 (3d ed. 1998)].

EuroUSA Shipping, Inc., Tober Group, Inc., and Container Innovations, Inc. – Possible Violations of Section 10 of the Shipping Act of 1984 and the Commission’s Regulations at 46 C.F.R. § 515.27, 31 S.R.R. 540, 545 (FMC 2008).

The party moving for summary judgment bears the initial burden of identifying evidence that demonstrates the absence of any genuine issue of material fact. *Green v. Dalton*, 164 F.3d 671, 675 (D.C. Cir. 1999) (citing *Celotex Corp. v. Catrett*, 477 U.S. 317, 323 (1986)). The mere existence of a factual dispute will not in and of itself defeat an otherwise properly supported motion for summary judgment. *Anderson*, 477 U.S. at 249. However, “[w]here the record taken as a whole could not lead a rational trier of fact to find for the non-moving party, there is no ‘genuine issue for trial.’” *Matsushita Elec. Indus. Co. v. Zenith Radio Corp.*, 475 U.S. 574, 587 (1986) (citation omitted). The inferences to be drawn from the underlying facts must be viewed in the light most favorable to the party opposing the motion. *Id.*

USL Auto Exporting’s Statement of Material Facts itself acknowledges that there is at least one dispute. SMF No. 2 acknowledges that there is dispute as to whether the parties were even in a business relationship. USL Auto Exporting cites no specific evidence for its claim, and none of the documents attached to the motion for summary judgment show any transactions, agreements, or even direct communication between USL Auto Exporting and Easy Shipping. See, e.g., Exs. B and C, forwarding emails between Easy Shipping and Khalid Arwini to USL Auto Exporting. Easy Shipping denied in its answer that it had a business relationship with USL Auto Exporting. See Answer ¶¶ 1-2. This denial appears to be abandoned in Easy Shipping’s opposition to the motion for summary judgment. See also Joint Status Report, p. 1 (acknowledging that there is an agreement between Complainant and Respondent). At least half of USL Auto Exporting’s remaining Statements of Material Fact are not facts but legal conclusions. See SMF Nos. 6-10.

The only facts alleged that are not disputed on their face (or legal conclusions) are that the bill of lading incorrectly showed a Toyota 4Runner instead of a Toyota Tundra, that Easy Shipping failed to pay a \$310.52 return basic freight charge and did not file an importer security filing on time. There are no citations to the exhibits to support these factual assertions. It is USL Auto Exporting’s responsibility to support its factual positions by citing to particular parts of materials in the record. Fed. R. Civ. P. 56(c). And while Easy Shipping has not responded to USL Auto Exporting’s motion with its own statement of facts, it has no obligation to do so if the movant has not properly supported its motion with sufficient evidence. *Van v. Miami-Dade County*, 509 F. Supp. 2d 1295, 1299 (S.D. Fla. 2007). To properly support a motion for summary judgment, the moving party must demonstrate that the facts underlying all the relevant legal

questions raised by the pleadings or otherwise are not in dispute, or else summary judgment will be denied notwithstanding that the non-moving party has introduced no evidence whatsoever. *Id.* (citing *Brunswick Corp. v. Vineberg*, 370 F.2d 605, 611–12 (5th Cir.1967)). Since USL Auto Exporting has not properly supported its motion, it is not necessary to determine whether there is a genuine dispute as the facts alleged, or whether those facts establish a violation of the Shipping Act – summary judgment must be denied.

USL Auto Exporting also claims these facts establish a violation of 46 U.S.C. § 41104(a)(2)(A),² which prohibits a common carrier from providing “service in the liner trade that is not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under chapter 405 of this title.” USL Auto Exporting presents no evidence or argument regarding any published tariff or service contract, and I also note that this claim is absent from its complaint, which is limited to violations of 46 U.S.C. § 41102(c) and 41104(a)(3).

For the foregoing reasons, the motion for summary judgment is **DENIED**. I note that the motion for summary judgment does not comply with the Initial Order. The attachments to the motion do not have page numbers, the statement of material facts is not in a separate document, and, as stated above, it lacks citations. See December 11, 2023 Initial Order, ¶¶ 4 and 16. I caution the parties that they may be required to refile any future filings that do not comply with the Commission’s Rules or with the Initial Order.

**Alex Michael
Chintella** Digitally signed by
Alex Michael Chintella
Date: 2024.03.18
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Alex M. Chintella
Administrative Law Judge

² Complainant cites “46 U.S.C. § 41104(a)(A),” but it is apparent that it intends 46 U.S.C. § 41104(a)(2)(A).